SERVICES AGREEMENT

SousShift AI · Agreement no. SSAI-20261022-NALU-VIDA-SEP4

This Services Agreement (the "Agreement") is between **Antidote Enterprises LLC, doing business as SousShift AI** ("Provider"), and **NALU VIDA LLC, doing business as Nalu Vida** ("Client"), located at Nalu Vida, 1 Washington Blvd, Venice, CA 90292 (at the foot of Venice Pier). It takes effect on the date of the last signature below (the "Effective Date").

1. SERVICES

Provider will build, host and maintain the following for Client:

- A custom restaurant app for Nalu Vida: digital menu with photos and prices, the restaurant's branding, hours, call and directions buttons, and 12 languages
- A custom game for Nalu Vida (the Ride the Nalu surf game) with levels, a start menu, sound, a weekly leaderboard and prizes chosen by Client
- The rewards program in Section 1A(b), plus referrals, visit levels, birthday and come-back offers, a daily lucky draw, promo codes and notifications, all set by Client
- Toast loyalty integration for Nalu Vida as described in Section 1A(a), and Interim Mode (Section 1C) while Toast approval is pending
- Customer sign-ups and a customer list Client owns, kept separate from any other restaurant
- Designer QR codes: table stickers, window posters and numbered table cards (print-ready files; printing is billed by the print shop)
- An owner onboarding page and setup pages to choose deals and prizes
- Hosting, maintenance and support, with routine menu, price and content updates as Section 1D allows

"Go-Live" in this Agreement means the Launch Approval Date defined in Section 1A. Provider will ask Client to approve the build before launch. Changes outside this list are quoted and billed separately.

1A. LAUNCH REQUIREMENTS AND LAUNCH APPROVAL

The App fully launches once all of the following launch requirements (the "Launch Requirements") are met at Nalu Vida and Client has approved them in writing (email counts). Until then, the App may run in Interim Mode under Section 1C. Monthly billing does not wait for launch; it follows Section 2 (Monthly payment):

- **(a) Toast loyalty integration.** The App's rewards are connected to Nalu Vida's Toast point-of-sale system and tested at the restaurant with Client's staff during normal service, showing that: points are earned automatically on eligible purchases; points won in the game go to the same

customer account; staff can look up a member and redeem a reward in Toast; points are deducted automatically when a reward is redeemed; and each reward can be used only once.
- **(b) Rewards program.** A simple rewards program is live: 10 points for each eligible $1 spent, plus bonus points for gameplay, registration, referrals and birthdays, each bonus with a cap Client approves, and one points balance per customer for Nalu Vida. Eligible purchases are the items Client marks as eligible. Client is responsible for excluding any item that may not lawfully earn rewards (for example, alcoholic beverages where California ABC rules restrict it).

When Provider believes the Launch Requirements are met, it will tell Client in writing. Within 10 business days Client will either approve in writing or send a written list of what is not yet met. Client will not unreasonably withhold or delay approval. Provider will fix the listed items and ask again. The date of Client's written approval is the "Launch Approval Date".

1B. PHASE 2: APP ORDERS INTO TOAST

Sending App orders directly into Toast and the kitchen is a phase-2 goal. It depends on a separate approval from Toast that neither party controls. It is not a Launch Requirement, and it does not delay the Launch Approval Date or monthly billing. If Toast approves it, the parties will agree in writing on any change in scope or price before Provider builds it.

1C. INTERIM MODE (BEFORE THE TOAST INTEGRATION)

While Toast partner access is pending, the App may go live at Nalu Vida in a temporary interim mode ("Interim Mode"). Interim Mode starts only after Client gives its OK in writing (email counts). In Interim Mode:

- **Joining and playing.** Guests can join, play the game and earn game points as usual.
- **Earning points on purchases.** Guests earn purchase points by claiming their receipt in the App (a photo of the receipt, or the check number and total). The eligible-purchase rule in Section 1A(b) applies. Receipt claims are subject to the caps Client approves, and Client (or its manager) may spot-check and reject any claim in the owner view.
- **Redeeming.** Guests redeem rewards on their own phone with a single-use reward pass that stays live for 10 minutes. Staff check the live pass and ring a preset discount button in Toast. Staff never need to use their own phones. Provider will help Client set up the discount button.
- **Monthly fee.** The monthly fee applies during Interim Mode, on the schedule in Section 2 (Monthly payment). No performance share (Section 2A) is owed for any period before the Launch Approval Date. The 90-day Pilot (Section 3) starts on the Launch Approval Date, not when Interim Mode starts.
- **Ending Interim Mode.** Interim Mode ends on the Launch Approval Date, once the Toast loyalty integration has passed the staff test in Section 1A(a) and Client has approved it. Members, points balances and unused rewards carry over to the Toast-connected program. The member list collected in Interim Mode is Client's customer data under Sections 5, 5A and 5B.

Interim Mode is a temporary bridge. It does not replace Launch Requirement (a), and it is not a Launch Approval.

1D. CHANGES AFTER LAUNCH

Before launch. Until the Launch Approval Date, changes Client asks for while reviewing the build are included in the setup fee.

Included after launch. After the Launch Approval Date, the monthly fee includes routine content updates: menu items and prices, hours, deal and prize text, and photos Client supplies, up to two (2) update requests per calendar month (one request may list several items). Unused requests do not roll over.

Always free. Provider fixes, at no charge, anything in the App that stops working or does not work the way Client approved it, and any change Provider makes on its own initiative, including keeping the Toast integration working after launch.

Paid change requests. Any other change after the Launch Approval Date, including a third or later update request in a month, new features, changes to the game (rules, levels, characters or graphics), redesigns, and re-doing anything Client already approved, is a "Change Request," billed as follows:

- **Small change** (text, image, color or layout tweak that takes about one hour or less): $75 flat per change.
- **Larger change:** $95 per hour, in half-hour increments. Provider first sends a written quote (email or text counts) with the estimated hours and price, and starts only after Client approves the quote in writing. Provider will not bill more than the approved quote without Client's further written approval.
- **Rush** (completed within 24 hours at Client's request): the price above plus 50%.

Change Requests are added to the next monthly invoice and are due 15 days after that invoice. Provider schedules Change Requests within a reasonable time, normally 3 to 5 business days for small changes.

2. FEES

Item	Stand-alone price if Nalu Vida runs alone	Client's price while Melody Bar & Grill also has an active agreement
Setup (one time)	$1,000	**$750** see Section 2B
Monthly service	$200 / month	**$150 / month** first due November 12, 2026, then the 12th of each month; see Section 2
Performance share	None	**10% of App-Attributed Sales over $3,000** only in a month they exceed $3,000; food and non-alcoholic only; see Section 2A

Setup payment: The setup fee ($750, or $1,000 where Section 2B applies) is due now, in full, by card through the Stripe payment link Provider sends Client. That checkout also saves Client's card on file for the monthly autopay in Section 2 (Monthly payment).

Monthly payment: The monthly fee is counted from October 12, 2026, the day the Melody Bar & Grill setup fee was paid, and does not wait for the Launch Approval Date or Interim Mode. It is billed in advance on the 12th of each month, with the first payment due November 12, 2026. While both agreements are in effect, the $150 monthly fee under this Agreement and the $150 fee under the Companion Agreement (Section 2B) are charged together as one $300 payment on the same date; the first combined $300 payment is due November 12, 2026. Payment method and autopay: Client pays

by card kept on file with Provider's payment processor, Stripe. Client authorizes Provider to charge that card automatically each billing date for the monthly fee under this Agreement (and, while both agreements are in effect, the combined amount above) until this Agreement ends under Section 3 or Section 3B. Ending this Agreement stops all charges for billing months that start after the end date. Client may update the card at any time. If a charge fails, Provider will tell Client, and the late-payment terms below apply. Section 2B sets out when the stand-alone price applies.

If a payment is more than 15 days late, Provider may pause the service until it is paid. Prices do not include any third-party costs Client chooses to add (for example printing beyond the included QR table tents, paid advertising, or prizes).

2A. PERFORMANCE SHARE

In addition to the monthly fee, in any calendar month in which App-Attributed Sales exceed $3,000, Client will pay Provider 10% of the amount by which that month's App-Attributed Sales exceed $3,000. The 10% applies only to the amount above $3,000, not to the first $3,000 (for example, App-Attributed Sales of $5,000 in a month means 10% of $2,000). In a month where App-Attributed Sales are $3,000 or less, no performance share is owed.

"App-Attributed Sales" means sales to customers who join, engage with or come back through the App: (a) orders placed through the App, and (b) purchases at Client's register where the customer is identified through the App, because the customer shows their member QR code or code, staff enter the member's phone number, or the customer redeems an App reward, promo code or points. App-Attributed Sales count food and non-alcoholic beverage sales only. They exclude sales tax, tips and gratuities, and all alcoholic beverages. Client's other sales are never included.

Provider will send Client a statement by the 5th day of each month for the month before, listing each App-Attributed sale (date, receipt number, member, how the member was identified, and the amount counted). Client may dispute a statement in writing within 10 days of receiving it, and the parties will reconcile the disputed items against Client's register (POS) reports in good faith. Payment is due within 15 days of the statement date; a disputed amount is due within 15 days after it is resolved.

2B. PAIRED AND STAND-ALONE PRICING

Nalu Vida and Melody Bar & Grill are separate businesses, each with its own agreement with Provider. Melody Bar & Grill's agreement with Provider is called the "Companion Agreement" here. The parties agreed the stand-alone price in advance:

- **Monthly.** The monthly fee is $150 for each billing month that begins while the Companion Agreement is in effect. For any billing month that begins while the Companion Agreement is not in effect (because it was never signed or has ended), the monthly fee is the stand-alone $200.
- **Setup.** The setup fee is $750 if the Companion Agreement is signed within 30 days after the Effective Date. If it is not, the setup fee is the stand-alone $1,000, and the $250 difference is due within 15 days after Provider's invoice. Once both agreements are signed, the setup fee stays at $750 even if the Companion Agreement later ends. Setup amounts Client has paid under this Agreement count toward these amounts.
- **Combined charge.** While both agreements are in effect, this Agreement's monthly fee and the Companion Agreement's monthly fee are charged together as one card charge on the same date (Section 2, Monthly payment). If the Companion Agreement ends, the card is charged only for this Agreement's fee from the next billing date.

- A move to the stand-alone price is a price term of this Agreement only. It does not make Client responsible for any fee, obligation or liability under the Companion Agreement.

2C. ALCOHOL (CALIFORNIA ABC)

No fee under this Agreement is based on, or shares in, Client's sales of alcoholic beverages. Provider does not hold an alcohol license and does not receive any part of Client's alcohol revenue.

2D. TOAST INTEGRATION (NO EXTRA FEE)

There is no fee for connecting Nalu Vida's Toast account to the App, for Toast testing and certification, or for the staff test in Section 1A(a). Keeping the integration running is included in the monthly fee.

Toast's own charges. If Toast charges the restaurant anything to turn on or keep a partner integration, it is passed through to Client at cost, with no markup. Provider will tell Client the amount in writing before the integration is turned on, and Client decides whether to go ahead.

3. TERM AND CANCELLATION

This Agreement starts on the Effective Date. A 90-day pilot (the "Pilot") begins on the Launch Approval Date. Either party may end this Agreement at the end of the Pilot by written notice (email counts) given at least 10 days before the Pilot ends. Otherwise it continues month to month, and either party may cancel by giving 30 days' written notice; email counts. Client may also end this Agreement by written notice at any time before the Launch Approval Date; in that case no monthly fee is owed for any billing month that starts after the notice date, and monthly fees already paid are not refunded. The setup fee is non-refundable once Provider has delivered the build for Client's review, except as Section 3B provides. If Client cancels, Client's customer data is handled as described in Section 5A.

3A. RESULTS PROMISE

Provider's goal is for the App to bring back at least 30 tracked return visits within a 30-day period. If, during the first 3 months after Go-Live, there is no 30-day period in which the App brought back at least 30 tracked return visits, Provider will give Client 2 months of service free: the next 2 monthly payments after that 3-month period are waived. A "tracked return visit" is a visit by a customer identified through the App (an App order, the member's QR code or code, the member's phone number, or an App reward or promo code) on a later day than that customer's first visit. The count comes from the App's records, which Client can see in its owner view. This credit is Client's only remedy under this Section. It is not a promise of any particular sales or revenue, and fees already paid, including the setup fee, are not refunded.

3B. TOAST PARTNER ACCESS

Launch Requirement (a) needs Toast to grant Provider partner (integration) access for Nalu Vida's Toast account. Toast controls that approval and its certification process, and neither party can promise it or its timing. Provider will apply promptly and keep Client informed. If Toast has not granted that access within 120 days after the Effective Date, then either (i) either party may end this Agreement by written notice (email counts), or (ii) the parties may agree in writing to keep using Interim Mode (Section 1C), on terms they agree in writing, and set a new deadline. Until then the monthly fee continues under Section 2. If this Agreement ends under this Section, no monthly fee is owed for any billing month that starts after the end date, Client owes no further fees, the card on file is not charged again, and Provider will refund 50% of the setup fee Client paid for Nalu Vida within 15 days after the end date. Ending under this Section is not a breach by either party.

Toast costs. Apart from any Toast charge passed through under Section 2D, Provider covers its own Toast partner, insurance and hosting costs.

4. CLIENT RESPONSIBILITIES

- Provide accurate menu items, prices, hours and photos, and tell Provider about changes.
- Choose, fund and honor any prizes, discounts or rewards published in the game. Provider does not pay for prizes.
- Run any prize promotion as a free-to-enter promotion with official rules, and follow the laws that apply to Client's business and promotions. Provider will supply standard official-rules text for Client to approve.

5. OWNERSHIP AND DATA

Client owns its business name, logo, menu content, photos it provides, and its customer data. Provider owns the software, game code and design system, and gives Client the right to use them for as long as this Agreement is active. Provider will not sell Client's customer data.

5A. CUSTOMER DATA

While Client is paying. While Client is paying for the service, Client has full access to all customer information collected through the App, including names, phone numbers, email addresses, visit and points history, and the export (CSV) of that list.

If the service ends. If Client stops paying or cancels, Client keeps a complete export of every customer collected through the App up to the date the service ends (the "Termination Date"). Provider will deliver that export to Client within 10 days after the Termination Date.

After the Termination Date. From the Termination Date on, the App stops collecting customers for Client, and Provider has no obligation to collect, store or provide customer information for Client after that date.

Provider's use. Provider will not sell Client's customer list or use it for any other business. After delivering the export, Provider will delete the data, or archive it only where the law requires.

Privacy. Client is responsible for using the customer list in line with the consent each customer gave, including text and email opt-ins and opt-outs (for example, a customer who replies STOP).

5B. SEPARATE RESTAURANT, SEPARATE AGREEMENT

- **One restaurant.** This Agreement covers only Nalu Vida. Melody Bar & Grill is covered by its own separate agreement with its own owner entity.
- **Own billing.** Provider bills Client only for Nalu Vida. The combined monthly card charge in Sections 2 and 2B is a payment convenience only: each receipt or invoice shows Nalu Vida's fee separately, and Client is responsible only for Nalu Vida's share.
- **Own customer database.** Nalu Vida's customer list, points balances and rewards are kept in a database separate from Melody Bar & Grill's. Provider will not share, merge or cross-promote Nalu Vida's customers with Melody Bar & Grill without Client's written consent.
- **Ownership and export.** Client owns Nalu Vida's customer data. Client may export it (CSV) at any time while this Agreement is active, and after it ends as Section 5A provides.
- **Own cancellation rights.** Client may end this Agreement under its own terms without ending the Companion Agreement, and the Companion Agreement may end without ending this one. A breach, non-payment or termination under one agreement is not a breach of the other, and

Provider will not pause or withhold Nalu Vida's service because of anything under the Companion Agreement.

- **No cross-liability.** Client is responsible only for its own obligations under this Agreement. Client is not liable for any obligation of Melody Bar & Grill or its owners, and Melody Bar & Grill and its owners are not liable for Client's obligations. The liability limit in Section 7 applies to each agreement separately.
- **No personal guarantee.** No individual guarantees Client's obligations. The person signing below signs only as Client's authorized representative and is not personally liable under this Agreement.

6. NO GUARANTEED RESULTS

Provider builds and runs the system but does not promise any specific number of customers, visits or sales.

7. LIMITS ON LIABILITY

Neither party is liable for indirect or lost-profit damages. Provider's total liability under this Agreement is limited to the fees Client paid in the three months before the claim.

8. CONFIDENTIALITY

Each party will keep the other's non-public business information confidential and use it only for this Agreement.

9. SPECIAL TERMS

Once this Agreement is signed, the App Development & Services Agreement signed on October 3, 2026 with Second Shift AI, and every earlier draft (including the combined draft R6 of October 11, 2026), no longer apply to Nalu Vida; Melody Bar & Grill is handled only under its own agreement. The AI agents are optional add-ons, not included in the monthly fee; if Client adds them they are billed to Nalu Vida only: AI Text Assistant $75/month, or AI Voice Host + Text $150/month. If anything elsewhere in this Agreement conflicts with Sections 1A, 1B, 1C, 1D, 2B, 2C, 2D, 3B or 5B, those Sections control.

10. GENERAL

California law governs this Agreement. It is the whole agreement between the parties on this subject, and any change must be in writing signed by both. Electronic signatures are valid and binding.

CLIENT: NALU VIDA LLC, doing business as Nalu Vida

/sc1/

Name: Christian Warren
Title: Authorized Representative (signing for Client only; no personal guarantee)
Email: christianrwarren@gmail.com
Date: /dc1/

PROVIDER: Antidote Enterprises LLC dba SousShift AI

/sp1/

Name: Anthony Louis Suggs Jr.
Title: Owner
Email: secondshiftai@gmail.com
Date: /dp1/

Prepared October 22, 2026.